

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2968
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Title 8, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 8-469.03, to read:

4 8-469.03. Child welfare; dependency; termination of
5 parent-child relationship; permanent
6 guardianship; parental criminal history;
7 admissibility; definition

8 [A. NOTWITHSTANDING ANY OTHER LAW, IN ANY CHILD WELFARE,
9 DEPENDENCY, TERMINATION OF PARENT-CHILD RELATIONSHIP OR PERMANENT
10 GUARDIANSHIP MATTER BROUGHT PURSUANT TO THIS TITLE, THE CRIMINAL HISTORY
11 OF A PARENT SHALL BE ADMISSIBLE AS EVIDENCE, SHALL BE AVAILABLE TO THE
12 COURT AND TO ALL PARTIES AND SHALL NOT BE SEALED OR WITHHELD. THE
13 CRIMINAL HISTORY OF A PARENT SHALL BE CONSIDERED PRESUMPTIVELY RELEVANT TO
14 THE SAFETY OF A CHILD AND THE FITNESS OF THE PARENT.

15 B. FOR THE PURPOSES OF THIS SECTION, "CRIMINAL HISTORY" INCLUDES
16 ALL OF THE FOLLOWING:

17 1. ARREST RECORDS.
18 2. CHARGING RECORDS.
19 3. CONVICTIONS.
20 4. SENTENCING.
21 5. PROBATION INFORMATION.
22 6. ANY OTHER RECORDS ARISING FROM A CRIMINAL INVESTIGATION,
23 PROSECUTION OR DISPOSITION OF A CRIMINAL MATTER.]>>

24 Sec. 2. Title 25, chapter 4, article 1, Arizona Revised Statutes,
25 is amended by adding [section] [sections] 25-419 [and 25-420], to read:

26 25-419. Submission of evidence; court discretion; prejudicial
27 rulings; definitions

28 A. IN ANY MATTER INVOLVING LEGAL DECISION-MAKING OR PARENTING TIME,
29 THE COURT [MAY] [SHALL] NOT APPLY ANY RULE TO EXCLUDE RELEVANT EVIDENCE

1 BASED SOLELY ON THE FORMAT OF THE EVIDENCE, HEARSAY CLASSIFICATION OF THE
2 EVIDENCE OR PROCEDURAL PROCESS IF THE EVIDENCE BEING OFFERED IS ~~[ALL]~~
3 [ANY] OF THE FOLLOWING:

4 1. RELATED TO A CHILD'S:

5 (a) SAFETY.

6 (b) MENTAL OR EMOTIONAL WELL-BEING.

7 (c) TRAUMA INDICATORS.

8 (d) EXPRESSED WISHES AS TO LEGAL DECISION-MAKING OR PARENTING TIME.

9 2. RELATED TO THE BEHAVIOR OF EITHER PARENT.

10 3. OFFERED IN GOOD FAITH.

11 4. NOT OFFERED SOLELY TO HARASS EITHER PARENT OR DELAY THE
12 PROCEEDING.

13 [B. AFTER THE ADMISSION OF EVIDENCE PURSUANT TO SUBSECTION A OF
14 THIS SECTION, THE COURT SHALL DO ALL OF THE FOLLOWING:

15 1. EVALUATE THE RELIABILITY, SOURCE AND WEIGHT OF THE EVIDENCE.

16 2. CONSIDER THE RELIABILITY, CORROBORATION AND AUTHENTICITY OF THE
17 EVIDENCE, INCLUDING THE SOURCE OF THE EVIDENCE, HOW THE EVIDENCE WAS
18 COLLECTED OR OBTAINED AND ANY POTENTIAL BIAS THAT MAY BE ASSOCIATED WITH
19 THE EVIDENCE.

20 C. IF EVIDENCE THAT IS ADMITTED PURSUANT TO SUBSECTION A OF THIS
21 SECTION IS HEARSAY EVIDENCE, THE COURT SHALL DO BOTH OF THE FOLLOWING:

22 1. ASSESS WHETHER TESTIMONY REGARDING THE EVIDENCE IS UNAVAILABLE
23 OR IF THE TESTIMONY WOULD CAUSE HARM TO A CHILD.

24 2. ASSESS THE RELIABILITY AND WEIGHT OF THE EVIDENCE, INCLUDING
25 WHETHER THE EVIDENCE RELATES TO ANY OF THE FOLLOWING FACTORS:

26 (a) THE SAFETY OF A CHILD.

27 (b) ABUSE.

28 (c) TRAUMA INDICATORS.

29 (d) PROTECTIVE CONCERNS.]

30 ~~[B.]~~ [D.] IF EVIDENCE THAT IS RELEVANT TO THE SAFETY OF A CHILD,
31 THE FITNESS OF A PARENT OR THE ABUSE OF A CHILD IS DELAYED OR DISCOVERED
32 IMMEDIATELY BEFORE AN EVIDENTIARY HEARING AT WHICH THE EVIDENCE WOULD BE
33 ADMITTED AND THE DELAY OR LATE DISCOVERY OF THE EVIDENCE IS FOR GOOD
34 CAUSE, THE COURT SHALL CONTINUE THE EVIDENTIARY HEARING TO THE EARLIEST
35 PRACTICABLE DATE TO ALLOW FOR THE DISCLOSURE AND SUBMISSION OF THE
36 EVIDENCE. BEFORE GRANTING A CONTINUANCE OF AN EVIDENTIARY HEARING
37 PURSUANT TO THIS SUBSECTION, THE COURT SHALL MAKE SPECIFIC FINDINGS ON THE
38 RECORD AS TO THE FINDING OF GOOD CAUSE. [GOOD CAUSE SHALL BE LIBERALLY
39 CONSTRUED IN FAVOR OF ADMITTING EVIDENCE THAT IS RELATED TO THE SAFETY OF
40 A CHILD. FOR THE PURPOSES OF THIS SUBSECTION, "GOOD CAUSE" INCLUDES
41 DELAYS THAT ARE CAUSED BY ANY OF THE FOLLOWING:

42 1. A THIRD-PARTY CUSTODIAN OF RECORDS.

43 2. CIRCUMSTANCES OUTSIDE THE CONTROL OF THE PARTY THAT IS SEEKING
44 TO ADMIT THE EVIDENCE.

45 3. UNFORESEEN EVENTS THAT INCLUDE ANY OF THE FOLLOWING:

46 (a) AN ILLNESS.

47 (b) AN EMERGENCY.

1 (c) A TECHNICAL ISSUE OR FAILURE.]

2 ~~[C.]~~ [E.] NOTWITHSTANDING ANY OTHER LAW, THE CRIMINAL RECORD OF A
3 PARENT SHALL BE ADMITTED AS EVIDENCE IN ANY MATTER INVOLVING LEGAL
4 DECISION-MAKING OR PARENTING TIME.

5 ~~[D.]~~ [F.] THE COURT SHALL MAKE WRITTEN FINDINGS ON THE RECORD AS
6 TO THE RELEVANCE AND CREDIBILITY OF EVIDENCE OFFERED PURSUANT TO
7 SUBSECTION A OF THIS SECTION. IF THE COURT DETERMINES THE EVIDENCE IS
8 CREDIBLE, THE COURT SHALL ALLOW THE SUBMISSION OF THE EVIDENCE WITHOUT
9 LIMITATION. FAILURE OF A COURT TO MAKE THE WRITTEN FINDINGS REQUIRED BY
10 THIS SUBSECTION CONSTITUTES A REVERSIBLE ERROR.

11 ~~[F.]~~ [G.] THE COURT SHALL ALLOW THE SUBMISSION OF EVIDENCE
12 PURSUANT TO THIS SECTION BY BOTH PARENTS EQUALLY. ANY RULING BY THE COURT
13 THAT ALLOWS FOR UNEQUAL SUBMISSION OF EVIDENCE BY EITHER PARENT SHALL BE
14 CONSIDERED PREJUDICIAL AS A MATTER OF LAW. A PARENT WHO IS ADVERSELY
15 AFFECTED BY THE UNEQUAL SUBMISSION OF EVIDENCE SHALL BE ENTITLED TO
16 IMMEDIATE APPELLATE REVIEW OR RELIEF THROUGH A SPECIAL ACTION.

17 [H. FOR THE PURPOSES OF THIS SECTION:

18 1. "GOOD FAITH" MEANS THE EVIDENCE IS OFFERED FOR THE PURPOSE OF
19 ASSESSING CHILD SAFETY OR PARENTAL BEHAVIOR.

20 2. "RELEVANT EVIDENCE" MEANS EVIDENCE THAT IS RELATED TO ANY OF THE
21 FOLLOWING:

22 (a) THE SAFETY OF A CHILD.

23 (b) TRAUMA OF A CHILD.

24 (c) THE EMOTIONAL WELL-BEING OF A CHILD.

25 (d) THE CHILD'S EXPRESSED WISHES AS TO LEGAL DECISION-MAKING OR
26 PARENTING TIME.

27 (e) THE BEHAVIOR OF EITHER PARENT.]

28 25-420. Parental criminal history; admissibility; definition

29 [A. NOTWITHSTANDING ANY OTHER LAW, IN ANY PARENTING TIME OR LEGAL
30 DECISION-MAKING MATTER BROUGHT PURSUANT TO THIS CHAPTER, THE CRIMINAL
31 HISTORY OF A PARENT SHALL BE ADMISSIBLE AS EVIDENCE, SHALL BE AVAILABLE TO
32 THE COURT AND TO ALL PARTIES AND SHALL NOT BE SEALED OR WITHHELD. THE
33 CRIMINAL HISTORY OF A PARENT SHALL BE CONSIDERED PRESUMPTIVELY RELEVANT TO
34 THE SAFETY OF A CHILD AND THE FITNESS OF THE PARENT.

35 B. FOR THE PURPOSES OF THIS SECTION, "CRIMINAL HISTORY" INCLUDES
36 INFORMATION ON ALL OF THE FOLLOWING:

37 1. ARREST RECORDS.

38 2. CHARGING RECORDS.

39 3. CONVICTIONS.

40 4. SENTENCING.

41 5. PROBATION INFORMATION.

42 6. ANY OTHER RECORDS ARISING FROM A CRIMINAL INVESTIGATION,
43 PROSECUTION OR DISPOSITION OF A CRIMINAL MATTER.]

1 Sec. 3. Legislative findings
2 The legislature finds that:
3 1. It is in the best interest of this state to ensure that the
4 family court is equipped to hear and evaluate safety-related evidence that
5 is necessary to protect children.
6 2. It is important to remove procedural barriers to the submission
7 of evidence in a family law matter that unfairly silences protective
8 parents or serves to deny the admission of critical evidence related to a
9 child's safety and well-being.
10 3. It is in the best interest of this state to allow the court to
11 make determinations regarding the credibility of evidence but remove the
12 ability of a court to reject relevant evidence based solely on the form of
13 the evidence of procedural formalities.

14 Enroll and engross to conform
15 Amend title to conform
And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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